

Smt. Sharda Sharma v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 November 2014 · WRIT - C No. - 63307 of 2014 · **Writ dismissed; relegated to CGRF under clause 7.10(iii).**

HEADNOTE

A writ against the Executive Engineer's order on a clause 6.5 complaint is not maintainable when the consumer has a complaint to the Consumer Grievance Redressal Forum under clause 7.10(iii) of the U.P. Electricity Supply Code, 2005. The petition is dismissed on that alternative remedy, with liberty to approach the Forum within six weeks; if so filed, the Forum shall ignore limitation and decide the complaint on merits.

FACTUAL SUMMARY

Smt. Sharda Sharma, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., deposited the disputed amount and filed a complaint before the Executive Engineer under clause 6.5 of the U.P. Electricity Supply Code, 2005. The Executive Engineer decided that complaint by an order dated 16 October 2014. She then filed Writ-C No. 63307 of 2014 in the Allahabad High Court challenging that order. After an adjournment on 25 November 2014, the Division Bench heard both sides the next day.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::7.10(iii)

CGRF after Executive Engineer decides a clause 6.5 complaint

HOLDING

Once the Executive Engineer has decided a clause 6.5 complaint, the consumer's next remedy is a complaint to the Consumer Grievance Redressal Forum under clause 7.10(iii) of the U.P. Electricity Supply Code, 2005, not a writ. The petition is dismissed on that alternative remedy. The consumer may file the complaint within six weeks; if so filed, the Forum shall entertain it without examining limitation and decide it on merits after hearing the parties. ¶ 2-3

FLAG CGRF cited as clause 7.10(iii); not recast

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE EXECUTIVE ENGINEER'S 16.10.2014 ORDER ON THE CLAUSE 6.5 COMPLAINT

Writ dismissed solely on alternative remedy; the Forum is to decide the complaint on merits. ¶ 2-3